

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SULYAYMAN JASSEY,

Index No.:

Plaintiff,

SUMMONS

-against-

Plaintiff designates Bronx County
as the place of trial.

CITY OF NEW YORK; DETECTIVE DANIEL HULL
(SHIELD #3733 TAX #919192), LIEUTENANT LEO
JAMES (TAX #921493), POLICE OFFICER JOHN
REIBER (TAX #22680), DETECTIVE FRANCISCO
LEON (TAX #922643), DETECTIVE FRANK
MONGE (TAX #946019), JOHN and JANE DOE
NYPD OFFICERS 1 through 10, and JOHN and JANE
DOE CORRECTION OFFICERS 11 through 20, all
defendants individually and in their official capacities,

The basis of venue is:
CPLR § 504(3)

Defendants.

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TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if the summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
December 23, 2024

Robert W. Georges
Robert W. Georges, Esq.
KONTA GEORGES & BUZA P.C.
233 Broadway, Suite 900
New York, New York 10279
Tel. (212) 710-5166

TO:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

DETECTIVE DANIEL HULL (SHIELD #3733 TAX #919192);

LIEUTENANT LEO JAMES (TAX #921493);

POLICE OFFICER JOHN REIBER (TAX #22680);

DETECTIVE FRANCISCO LEON (TAX #922643);

DETECTIVE FRANK MONGE (TAX #946019);

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SULYAYMAN JASSEY,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK; DETECTIVE DANIEL HULL
(SHIELD #3733 TAX #919192), LIEUTENANT LEO
JAMES (TAX #921493), POLICE OFFICER JOHN
REIBER (TAX #22680), DETECTIVE FRANCISCO
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NYPD OFFICERS 1 through 10, and JOHN and JANE
DOE CORRECTION OFFICERS 11 through 20, all
defendants individually and in their official capacities

Defendants.

-----X

Plaintiff, by his attorneys, KONTA GEORGES & BUZA P.C. complaining of the
defendants, respectfully alleges as follows:

PARTIES

1. Plaintiff, SULYAYMAN JASSEY, is a male and has been at all relevant times a
resident of the County of Bronx, City and State of New York.

2. That Defendant, CITY OF NEW YORK, was and is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, CITY OF NEW YORK, maintains the New York City Police
Department ("NYPD"), duly authorized public authorities and/or police departments, authorized
to perform all functions of a police department as per the applicable sections of the New York

State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, Defendant CITY OF NEW YORK.

4. That at all times relevant Defendants CITY OF NEW YORK; and JOHN and JANE NYPD OFFICERS 1 through 10 (“DOE Defendants”) were police officers, detectives, supervisors, agents, servants and/or employees of the NYPD. Plaintiff does not know the real names and shield / tax numbers of the DOE Defendants.

5. Defendant THE CITY OF NEW YORK, maintains the New York City Department of Correction (“NYC DOC”) is the branch of the municipal government of the City responsible for the custody, control, and care of New York City's imprisoned population, housing the majority of them on Rikers Island.

6. That at all times relevant Defendants CITY OF NEW YORK; and JOHN and JANE CORRECTION OFFICERS 11 through 20 (“DOE Defendants”) were correction officers, supervisors, agents, servants and/or employees of the NYC DOC. Plaintiff does not know the real names and shield / tax numbers of the DOE Defendants.

7. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

8. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

9. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

10. The CITY OF NEW YORK is liable for the acts of its employees under the theory of *respondeat superior*.

STATEMENT OF FACTS

11. On or about July 4, 2014, at or around 6:57 a.m. plaintiff was lawfully in the vicinity of 525 East 138th Street, Bronx, New York.

12. When several New York City Police Officers, including Defendants, approached and stopped the Plaintiff without any legal justification.

13. The Officer Defendants unlawfully searched Plaintiff, despite the fact that they had no reasonable suspicion or other lawful basis to do so.

14. Defendants recovered no illegal contraband from Plaintiff.

15. Notwithstanding the fact that Defendants had no probable cause to believe that Plaintiff had committed any crimes offenses, Defendants placed Plaintiff into handcuffs and under arrest.

16. Defendants used excessive force in effectuating Plaintiff's arrest.

17. Plaintiff, SULYAYMAN JASSEY, was subsequently transported to the 40th Precinct located at 257 Alexander Avenue, Bronx, New York 10454, where he was questioned by Defendants about an alleged robbery that occurred on July 4, 2014 at 4:00 a.m. at 60 West 142nd Street, New York, New York.

18. At the precinct, the officers, including Defendants HULL, JAMES, REIBER,

LEON, MONGE, and/or the DOE Defendants falsely informed employees of the Bronx County District Attorney's Office ("DA's Office) that they had observed Plaintiff commit various crimes/offenses.

19. Neither HULL, JAMES, REIBER, LEON, MONGE, nor the DOE Defendants observed Plaintiff violate any laws/ordinances.

20. The allegations made by the individually named Defendants to the DA's Office were false, and the defendants knew them to be false at the time the defendants made the allegations.

21. The individually named defendants then forwarded these false allegations to the DA's Office in order to justify the unlawful arrest of Plaintiff and to persuade the DA's Office to commence and/ or continue the criminal prosecution of Plaintiff.

22. The individually named defendants knew and understood that the DA's Office was relying on the truthfulness of defendants' claims and statements in order to evaluate whether to commence a criminal prosecution against the Plaintiff. Defendants were aware that the DA's Office assumed that all of the factual statements, claims and allegations that defendants relayed to the DA's Office were truthful in all material respects.

23. The complainant of this alleged robbery (NYPD Complainant No.2014-032-04056) made a report at the 32nd Precinct that he was robbed by an individual who was wearing "an unusual shirt" that had a distinctive black design on the shirt.

24. On July 4, 2014 at approximately 1:37pm, Detective Frank Monge of the 40th Precinct Squad, Det. Daniel Hull, shield #3733 and Det./P.O.'s John Doe #1-10, made a photo array with six photos of individuals. In this photo array, the Plaintiff was the only person who

was wearing an unusual shirt with a distinctive black design. The other five (5) individuals in the photo array all wore solid-colored shirts that were not unusual and that did not have any unique designs. Looking at this photo array, the complainant picked the Plaintiff as the person who had robbed him.

25. The aforementioned Officer Defendants knew that his photo array was done in violation of the Plaintiff's right to be free from an unduly suggestive identification procedure as well as his right to a fair trial. Despite this knowledge, the aforementioned officers forwarded this photo array to the District Attorneys Office with knowledge that they would use the same in a criminal prosecution of the Plaintiff

26. Thereafter, Plaintiff was then indicted for the July 4, 2014 incident (Indictment No. 3221-2014) charging him with one (1) count of Robbery in the First Degree and three (3) counts of Grand Larceny in the Fourth Degree.

27. Plaintiff was then convicted by a jury after trial based on the clearly improper photo array identification procedure described above.

28. Plaintiff was sentenced on September 20, 2016 by the Hon. J. Mark Dwyer to an aggregate term of eleven (11) years in state prison.

29. In a decision dated June 28, 2022, the Appellate Division of the Supreme Court of New York, First Department unanimously reversed the Plaintiff's improper trial conviction and remanded the matter for a new trial finding that the above-described photo array was unduly suggestive and should have been suppressed by the hearing court. The Appellate Division ordered an independent source hearing prior to any re-trial.

30. At the independent source hearing, the court held the complainant could not identify the Plaintiff at a subsequent trial. Following this hearing, the Plaintiff was released from the custody of the NYC Department of Corrections. In total, the Plaintiff had been held in custody since his arrest in this case for approximately nine (9) years and four (4) months before his release. During this time, he was held by the NYC Department of Corrections and the New York State prison system.

31. Following the re-trial, on November 6, 2023 the Plaintiff was acquitted by the jury of each and every charge, specifically one (1) count of Robbery in the 1st Degree and two (2) counts of Robbery in the 4th Degree. A count of Grand Larceny in the 4th Degree was dismissed by Trial Order of Dismissal pursuant to C.P.L. 290.10(1) prior to even going to the jury.

32. At no time on July 4, 2014 did Plaintiff, SULYAYMAN JASSEY, ever commit a robbery or grand larceny or commit any other crime as it was alleged in the indictment.

33. In total, the Plaintiff was held in jail and state prison custody for approximately nine (9) years and four (4) months from the date of his arrest to the date of his release in this case.

34. Thereafter, while within the care, custody, and control of Defendants THE CITY OF NEW YORK, and NYC DOC, Plaintiff was subject to assault by correction officers and, as a result, sustained severe and permanent injuries.

35. While within the care, custody, and control of Defendants THE CITY OF NEW YORK, and NYC DOC, Plaintiff was denied proper medical treatment by the NYC DOC.

36. Plaintiff made several grievances while at Rikers Island requesting for his right ankle/foot to be treated, inter alia, which were ignored by Defendants THE CITY OF NEW YORK, NYC DOC, and their servants, agents, and employees.

37. Plaintiff suffered numerous injuries and sought medical treatment for the physical injuries to his body and psychiatric treatment for the emotional pain and suffering caused by Defendants' actions.

38. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of liberty, suffered extreme emotional distress, mental anguish, fear, pain, bodily injury anxiety, embarrassment, humiliation, reputational damage, loss of liberty, and loss of income. Plaintiff's liberties were restricted for an extended period of time, he was put in fear of his safety, and he was humiliated, searched and subjected to handcuffing and other extreme physical restraints.

[Intentionally left blank]

CLAIM ONE
Under State Law
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

39. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

40. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department and Department of Correction, including the defendants individually named above.

41. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department and Department of Correction, including the defendants individually named above.

42. Due to the negligence of the defendants as set forth above, Plaintiff suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation, shock, fright, and loss of freedom.

CLAIM TWO
Under State Law
NEGLIGENCE

43. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

44. Defendant CITY of New York for the oversight of its agents, servants, and/or employees, who include officials and staff at NYC NYPD and NYC DOC, including the individually named defendants and DOE Defendants.

45. Furthermore, the CITY is liable for damages caused by the negligent or wrongful acts of its agents, servants, and/or employees acting within the scope of their employment.

46. NYPD officials and staff have a duty to protect the civilian population in general, and PLAINTIFF in particular.

47. Defendants, including CITY and the individually named defendants breached their duty to protect the PLAINTIFF from harm by failing to take any actions to protect PLAINTIFF.

48. As a result of these actions and inactions by the NYPD officers, including the individually named defendants and DOE Defendants, PLAINTIFF suffered and is still experiencing pain and permanent injuries, shock, fright and loss of freedom.

CLAIM THREE
Under State and Federal Law
UNLAWFUL STOP, SEARCH, AND SEIZURE

49. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

50. As a result of the aforesaid conduct by defendants, PLAINTIFF's person and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

CLAIM FOUR
Under State and Federal Law
FALSE ARREST

51. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

52. Defendant police officers arrested Plaintiff in the absence of probable cause and without a valid warrant.

53. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the PLAINTIFF's rights.

CLAIM FIVE
Under State and Federal Law
FALSE IMPRISONMENT

54. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

55. Defendants or by their agents, employees and/or servants did, intentionally, knowingly, and purposefully confined the PLAINTIFF without his consent.

56. That PLAINTIFF was aware and cognizant of his wrongful confinement.

57. That defendants were not privileged in their confinement of PLAINTIFF.

58. That said occurrence and resulting damages occurred without any fault or wrongdoing on the part of the plaintiff contributing thereto.

59. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the PLAINTIFF's rights.

CLAIM SIX
Under State and Federal Law
MALICIOUS ABUSE OF PROCESS

60. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

61. The individual defendants issued legal process to place PLAINTIFF under arrest.

62. The Municipal Defendants arrested PLAINTIFF in order to obtain collateral objectives outside the legitimate ends of the legal process.

63. The Municipal Defendants acted with intent to do harm to PLAINTIFF without excuse or justification.

64. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained, *inter alia*, loss of liberty, loss of earnings, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

CLAIM SEVEN
Under State and Federal Law
MALICIOUS PROSECUTION

65. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

66. By their conduct, as described herein, defendants are liable to PLAINTIFF for having committed malicious prosecution under the laws of the State of New York.

67. Defendants maliciously commenced criminal proceeding against PLAINTIFF, falsely accusing PLAINTIFF of violating the law.

68. Defendants falsely and without probable cause charged PLAINTIFF with violations of the laws of the State of New York.

69. The commencement and continuation of the criminal proceedings against PLAINTIFF was malicious and without probable cause.

70. All charges were terminated in PLAINTIFF's favor.

71. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of PLAINTIFF. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

72. As a direct and proximate result of the misconduct and abuse of authority stated above, PLAINTIFF sustained the damages alleged herein.

CLAIM EIGHT
Under State and Federal Law
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

73. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

74. Defendants created false evidence against PLAINTIFF.

75. Defendants forwarded false evidence and false information to prosecutors in the District Attorney's office.

76. Defendants misled the prosecutors by creating false evidence against PLAINTIFF and thereafter providing false testimony throughout the criminal proceedings.

77. In creating false evidence against PLAINTIFF, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants

violated PLAINTIFF's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

78. As a result of the foregoing, PLAINTIFF's liberty was restricted for an extended period of time, was put in fear for PLAINTIFF'S safety, and was humiliated and subjected to handcuffing and other physical restraints without probable cause.

CLAIM NINE
Under State and Federal Law
UNREASONABLE FORCE

79. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

80. The defendants violated the Fourth and Fourteenth Amendments and New York State Law because they used unreasonable, excessive, and unjustified force on PLAINTIFF.

81. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM TEN
Under State and Federal Law
FAILURE TO INTERVENE

82. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

83. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

84. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

85. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM ELEVEN
Under State and Federal Law
ASSAULT AND BATTERY

86. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

87. Defendants' aforementioned actions placed PLAINTIFF in apprehension of imminent harmful and offensive bodily contact.

88. Defendant police officers touched PLAINTIFF in a harmful and offensive manner.

89. Defendant police officers did so without privilege or consent from PLAINTIFF.

90. As a result of defendants' conduct, PLAINTIFF has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

CLAIM TWELVE
Under State and Federal Law
DEPRIVATION OF FEDERAL RIGHTS

91. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

92. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

93. All of the aforementioned acts deprived PLAINTIFF of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth

Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

94. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

95. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

96. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

CLAIM THIRTEEN
Under State and Federal Law
DELIBERATE INDIFFERENCE TO SAFETY/MEDICAL NEEDS

97. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

98. The individual defendants were aware of a risk of plaintiff's safety and need for medical care and failed to act in deliberate indifference to PLAINTIFF's needs.

99. Accordingly, defendants violated the fourteenth amendment because they acted with deliberate indifference to PLAINTIFF's medical needs and safety.

100. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM FOURTEEN
Under State and Federal Law
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

101. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

102. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

103. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

104. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

105. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to PLAINTIFF.

106. As a result of the aforementioned conduct, PLAINTIFF suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright and loss of freedom.

CLAIM FIFTEEN
Under State Law
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

107. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

108. By reason of the foregoing, each defendant was negligent in committing conduct that inflicted emotional distress upon PLAINTIFF.

109. The negligent infliction of emotional distress by these Defendants was unnecessary and unwarranted in the performance of their duties.

110. Defendants, their officers, agents, servants, and employees were responsible for the negligent infliction of emotional distress upon PLAINTIFF.

111. The Defendant employers are responsible for the wrongdoings of their employees and agents under the doctrine of respondeat superior.

112. As a result of these actions and inactions by prison staff and officials, PLAINTIFF sustained pain and suffering, severe emotional distress, and the damages hereinbefore alleged.

CLAIM SIXTEEN
Under State and Federal Law
MUNICIPAL LIABILITY

113. PLAINTIFF repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

114. Defendants, collectively and individually, while acting under the color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which the Constitution of the United States forbids.

115. The aforementioned customs, policies, usages, practices, procedures, and rules of Defendant CITY, NYPD and NYC DOC include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
- iii. fabricating evidence in connection with their prosecution in order to cover

up police misconduct; and,

- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures; and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.
- vi. Failing to properly monitor the facility, specifically the housing area;
- vii. Failing to keep safe living conditions for inmates, specifically in the housing area;
- viii. Failing to take action when an imminent threat to inmate health and safety is known;
- ix. Failing to implement or enforce adequate procedures to remedy hazardous living conditions;
- x. Allowing a pattern of deliberate indifference to inmate health and safety by neglecting to provide appropriate medical care and mental health care;

116. The foregoing customs, policies, usages, practices, procedures and rules of Defendant CITY, NYPD and NYC DOC constituted deliberate indifference to the safety, well-being and constitutional rights of the PLAINTIFF.

117. The foregoing customs, policies, usages, practices, procedures and rules of the Defendant CITY, NYPD, NYC DOC were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFF as alleged herein.

118. The foregoing customs, policies, usages, practices, procedures and rules of the Defendant CITY, NYPD, NYC DOC were the moving force behind the constitutional violations suffered by the PLAINTIFF as alleged herein.

119. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF's constitutional rights.

120. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate corrections officers, and were directly responsible for the violation of the PLAINTIFF's constitutional rights.

121. The acts complained of deprived the PLAINTIFF of his right:

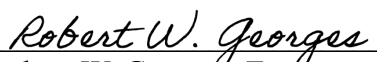
- A. To be free from cruel and unusual punishment;
- B. To have a minimum standard of living;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

122. By the reason of the above, PLAINTIFF demands compensation in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, PLAINTIFF respectfully requests judgment against the defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
December 23, 2024


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ATTORNEY'S VERIFICATION

ROBERT W. GEORGES, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under penalties of perjury:

I am an attorney at KONTA GEORGES & BUZA P.C., attorney of record for Plaintiffs. I have read the annexed:

COMPLAINT

And know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiffs is that Plaintiffs are not presently in the county wherein the attorneys for the plaintiff maintain their offices.

DATED: New York, New York
December 23, 2024

Robert W. Georges

ROBERT W. GEORGES, ESQ.